

Surendra Kumar v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 20 September 2024 · Writ - C No. 8116 of 2024 · **Reply to provisional assessment directed; recovery kept in abeyance.**

HEADNOTE

Writ disposed of by directing the petitioner to file, within one week, a reply to the provisional assessment addressed to the Executive Engineer. On that reply the Executive Engineer shall pass a final assessment order within four weeks. Recovery on the recovery certificate stays in abeyance for five weeks or until that decision, whichever is later.

FACTUAL SUMMARY

On 6 September 2023 the petitioner's premises were raided and an FIR was lodged alleging theft of electricity. Opposite party no. 4 issued a recovery citation dated 9 August 2024. The petitioner said no notice under Section 3 of the U.P. Electricity Supply Code, 2005 had been served, and that the Tehsil was recovering dues although no final assessment order existed. The licensee said a provisional assessment had issued and that the petitioner had written to the Managing Director rather than the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3

Reply to provisional assessment and abeyance of recovery until final order

HOLDING

The petition is disposed of with a direction that the petitioner submit, within one week, a reply to the provisional assessment addressed to the Executive Engineer (opposite party no. 2). If that reply is filed, the Executive Engineer shall consider it and pass a final assessment order within a further four weeks. Recovery proceedings on the recovery certificate shall remain in abeyance for five weeks or until that decision, whichever is later. ¶ 1

FLAG Section 3 of the U.P. Electricity Supply Code, 2005 appears only in the petitioner's plea of non-service of notice. The Court did not construe or apply that clause. The clause number is not reassigned.

PRINCIPLE TAGS

UP-2005::3 The petitioner invoked non-service of a Section 3 notice and the absence of a final assessment. The Court left Section 3 undecided and directed a reply to the provisional assessment, a final assessment by the Executive Engineer within four weeks, and abeyance of recovery until that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE UNDER SECTION 3 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS REQUIRED OR SERVED.

Recorded as the petitioner's case and not adjudicated. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT SUM IS ASSESSABLE.

Left to the Executive Engineer's final assessment order. ¶ 1

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 9 AUGUST 2024 WAS LIABLE TO BE QUASHED.

Recovery was kept in abeyance. The citation was not quashed. ¶ 1

